

3COM USA INTERNET SERVICES AGREEMENT

for App, Mini Program, Website, and Related Online Services

Effective Date: 07/15/2026

1. Parties and Acceptance

This Internet Services Agreement (“Agreement”) is between 3COM USA INC (“Company,” “we,” “us,” or “our”) and the person or entity accessing or using the Services (“user,” “you,” or “your”).

This Agreement governs your access to and use of the Company’s internet-based products and services made available through the Company’s website, mobile application, mini program, account center, customer portal, online store, support interfaces, and any related digital features (collectively, the “Services”).

By registering an account, clicking to accept, making a purchase, accessing, browsing, downloading, or using any part of the Services, you agree to be bound by this Agreement.

2. Scope of Services

The Services may include account registration and management, device binding and administration, service subscriptions, order placement, e-commerce checkout, customer support, cloud-enabled features, messages and notifications, account settings, product information, firmware or software updates, promotional activities, and other internet-based features we make available from time to time.

Specific service descriptions, plan details, eligibility requirements, feature availability, and additional rules may be shown in the app, mini program, website, order page, support center, or product documentation.

Certain features may also be governed by separate service-specific terms, including a Cloud Video Storage Service Agreement, warranty terms, or promotional rules. If there is a conflict, the more specific terms control for that feature.

3. Eligibility and Accounts

You must provide accurate, current, and complete registration information and keep it updated.

You are responsible for maintaining the confidentiality of your account credentials and for all activities occurring under your account unless caused by our failure to implement reasonable security measures.

You must promptly notify us of any unauthorized use of your account or other security incident involving the Services.

We may refuse registration, suspend accounts, reclaim usernames, or require additional verification where reasonably necessary for security, compliance, or operational reasons.

4. Commerce, Orders, and Online Store Overview

Some Services may allow you to browse products, place orders, purchase subscriptions, obtain digital features, or access an online store through the app, mini program, website, or other Company-operated checkout flow.

The detailed terms governing product listings, order acceptance, pricing, payment, shipping, returns, warranties, promotions, and regional restrictions are set out in Sections 5 through 13 of this Agreement.

In the event of any inconsistency between this overview section and Sections 5 through 13, Sections 5 through 13 control for online store and commerce-related transactions.

5. Online Store Terms and Conditions

If the Services include an online store, marketplace, or product ordering function, this Section applies to purchases of physical products, accessories, replacement parts, digital goods, and related offerings made through the app, mini program, website, or other Company-operated checkout flow.

Product descriptions, images, pricing, stock status, estimated delivery windows, compatibility information, and promotional statements are provided for convenience. Actual products, packaging, colors, labels, and included components may vary to the extent permitted by law.

We reserve the right to correct errors in product descriptions, pricing, availability, shipping details, tax calculations, or promotional content, and to refuse or cancel orders affected by such errors, subject to any refund obligations required by law.

6. Order Acceptance and Availability

Your submission of an order is an offer to purchase and does not guarantee acceptance. We may accept, reject, limit, or cancel orders in whole or in part for reasons including inventory issues, payment authorization failure, suspected fraud, suspected reseller activity, pricing or listing error, shipping restrictions, export control concerns, or other legitimate business reasons.

If we cancel an order after payment has been authorized or captured, we will issue a refund of the amount charged in accordance with our payment processor procedures and applicable law.

We may impose quantity limits, household limits, regional limits, or account-based restrictions on certain products, promotions, or launches.

7. Pricing, Taxes, and Payment

Prices shown through the online store are in the currency displayed at checkout and do not include taxes, duties, shipping fees, handling charges, insurance, or similar charges unless expressly stated otherwise.

You are responsible for all applicable sales, use, value-added, goods and services, import, export, customs, and similar taxes or charges arising from your purchase, except taxes imposed on the Company's net income.

We may use third-party payment processors or app platform billing tools. You authorize us and our payment providers to charge the selected payment method for the total order amount, including any recurring charges for subscriptions or service plans you select.

8. Shipping, Delivery, Title, and Risk of Loss

If physical goods are sold, shipping methods, delivery estimates, shipping restrictions, and available destinations will be shown at checkout or in the order confirmation. Delivery dates are estimates only and are not guaranteed unless expressly stated otherwise.

Title to physical goods passes to you upon our transfer of the goods to the carrier, and risk of loss or damage passes to you upon delivery to the carrier, except where applicable law requires otherwise.

You are responsible for providing an accurate and deliverable shipping address. We are not responsible for delay, non-delivery, or extra costs caused by inaccurate address information, failed delivery attempts, customs holds, carrier disruption, force majeure events, or refusal of delivery.

If local law requires a different allocation of title or risk, the mandatory legal rule will control to that extent.

9. Returns, Refunds, and Exchanges for Online Store Purchases

Return eligibility, return periods, restocking fees, exchange rights, and refund methods may vary by product type, region, promotional terms, and whether the item is a physical product, consumable, activated digital feature, downloadable software, or subscription.

Unless otherwise required by law or expressly stated in a posted return policy, the following items are not eligible for return after activation, download, fulfillment, or delivery: digital goods, software licenses, activated subscriptions, customized goods, final-sale items, and products damaged by misuse, accident, unauthorized modification, or improper installation.

To be eligible for return where returns are allowed, items must generally be returned in original or substantially similar condition with proof of purchase and all included accessories, packaging, manuals, and components, subject to reasonable wear associated with inspection.

Refunds, where approved, will be issued to the original payment method unless otherwise required by law. Original shipping charges, customs fees, duties, and similar non-product charges may be non-refundable except where required by law.

10. Product Warranties and Disclaimers for Goods

Any warranty for physical products sold through the online store is limited to the warranty, if any, expressly included with the product, posted on the product page, or provided in separate written warranty materials. Service terms or device warranties may be governed by separate product-specific warranty statements.

Except to the extent prohibited by law or expressly stated in a written limited warranty, products are provided without additional warranties of any kind, and the disclaimer provisions of this Agreement apply to the maximum extent permitted by law.

This Agreement does not limit any non-waivable consumer rights or statutory guarantees that apply under mandatory law.

11. Promotions, Coupons, and Gift Items

Promotions, discount codes, coupons, bundle offers, referral benefits, gift items, and limited-time campaigns are subject to the specific terms presented with the offer and may be modified, suspended, or withdrawn at any time to the extent permitted by law.

Promotional discounts have no cash value unless expressly stated otherwise and may not be combined with other offers except where expressly permitted.

If a return or refund reduces the qualifying purchase amount for a promotion, we may reduce the refund, cancel the promotional benefit, or charge back the value of the promotional item to the extent permitted by law and the applicable offer terms.

12. Export, Resale, and Regional Restrictions

Products sold through the online store may be subject to export control laws, sanctions restrictions, certification limits, destination limits, and region-specific technical or regulatory requirements.

You may not purchase products for unlawful export, prohibited resale, or shipment into jurisdictions restricted by applicable law or Company policy.

We may refuse, cancel, or limit transactions that appear to involve prohibited destinations, commercial resellers not authorized by us, or violations of applicable trade compliance rules.

13. Miscellaneous Online Store Provisions

Nothing in the online store terms limits our rights under the rest of this Agreement. In the event of conflict between this Agreement and a product-specific return policy, warranty statement, or order-specific terms, the more specific terms control for that transaction.

For clarity, the limitation of liability, disclaimer, governing law, dispute resolution, and privacy provisions of this Agreement also apply to online store activity unless a mandatory legal rule requires otherwise.

14. License and Permitted Use

Subject to your compliance with this Agreement, we grant you a limited, revocable, non-exclusive, non-transferable, non-sublicensable right to access and use the Services for your personal or internal business use, as applicable.

You may not copy, distribute, publicly display, modify, reverse engineer, decompile, scrape, harvest, frame, mirror, or create derivative works from the Services except as expressly allowed by applicable law or our written consent.

15. User Content and Submissions

You may be able to submit support requests, reviews, comments, messages, images, videos, account materials, or other content through the Services (“User Content”).

You retain rights in User Content you lawfully submit, but you grant us and our service providers a non-exclusive, worldwide, royalty-free license to host, store, reproduce, adapt only as technically necessary, transmit, display, and otherwise use User Content to operate, improve, secure, support, and enforce the Services and comply with law.

You are solely responsible for User Content and must ensure it does not violate law or third-party rights.

16. Prohibited Conduct

You may not use the Services to violate law, infringe rights, upload malware, engage in fraud, send spam, harass others, interfere with system integrity, bypass security controls, access non-public areas without authorization, or exploit the Services for unauthorized commercial purposes.

You may not use the Services to publish unlawful, defamatory, obscene, abusive, or misleading material, or to conduct unauthorized surveillance or unlawful data collection.

17. Third-Party Services and Links

The Services may integrate with or contain links to third-party platforms, app stores, mini program ecosystems, payment processors, cloud providers, logistics providers, analytics vendors, or customer service tools.

We are not responsible for third-party products or services except to the extent expressly required by law. Your use of third-party services may be subject to separate terms and privacy policies.

18. Service Availability, Updates, and Changes

We may modify, update, suspend, restrict, or discontinue any part of the Services at any time for business, security, legal, technical, or operational reasons.

We may perform scheduled or emergency maintenance that affects availability. We will use commercially reasonable efforts to provide notice where practicable.

We do not guarantee that the Services will always be available, uninterrupted, error-free, secure, or compatible with all devices, browsers, operating systems, or mini program environments.

19. Privacy and Data Processing

Our collection, use, disclosure, and protection of personal information in connection with the Services is described in the applicable Privacy Policy, which is incorporated by reference into this Agreement.

By using the Services, you acknowledge that we may collect and process account information, device information, transactional data, support communications, and other information described in the Privacy Policy to provide and administer the Services.

20. Intellectual Property

The Services and all related software, interfaces, designs, text, images, logos, content, trademarks, service marks, and technology are owned by us or our licensors and are protected by intellectual property laws.

Except for the limited use rights expressly granted in this Agreement, no rights are transferred to you.

21. Feedback

If you provide suggestions, ideas, comments, or other feedback regarding the Services, we may use that feedback without restriction or compensation to you.

22. Suspension and Termination

We may suspend or terminate your access to some or all of the Services immediately if you violate this Agreement, create security or legal risk, fail to pay applicable fees, engage in fraud or abuse, or if continued access is no longer commercially feasible or legally permitted.

You may stop using the Services at any time. Termination or cessation of use does not automatically entitle you to a refund unless required by law.

After termination, certain data, content, or account materials may no longer be accessible and may be deleted in accordance with our retention practices and Privacy Policy.

23. Disclaimers

TO THE MAXIMUM EXTENT PERMITTED BY LAW, THE SERVICES ARE PROVIDED “AS IS” AND “AS AVAILABLE,” WITHOUT WARRANTIES OF ANY KIND EXCEPT AS EXPRESSLY PROVIDED IN WRITING BY THE COMPANY.

WE DISCLAIM IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, NON-INFRINGEMENT, AND ANY WARRANTY THAT THE SERVICES WILL BE UNINTERRUPTED, ACCURATE, OR ERROR-FREE.

24. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW, WE WILL NOT BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES, OR FOR LOSS OF PROFITS, REVENUE, GOODWILL, DATA, OR BUSINESS OPPORTUNITY.

OUR TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THE SERVICES OR THIS AGREEMENT WILL NOT EXCEED THE GREATER OF (A) THE AMOUNT PAID BY YOU TO US FOR THE SPECIFIC SERVICE GIVING RISE TO THE CLAIM IN THE TWELVE MONTHS BEFORE THE CLAIM AROSE OR (B) USD \$100.

Nothing in this Agreement excludes liability that cannot be excluded under applicable law.

25. Indemnity

You will defend, indemnify, and hold harmless the Company and its affiliates, officers, directors, employees, contractors, and service providers from third-party claims arising out of your User Content, your misuse of the Services, your violation of this Agreement, or your violation of law or third-party rights.

26. Governing Law and Jurisdiction

This Agreement and any dispute arising out of or relating to it or the Services shall be governed by the laws of the State of California, United States of America, without regard to conflict of laws principles.

Any legal action or proceeding arising out of or relating to this Agreement shall be brought exclusively in the state or federal courts located in Santa Clara County, California, and each party irrevocably submits to the jurisdiction and venue of those courts.

The United Nations Convention on Contracts for the International Sale of Goods does not apply.

27. Changes to This Agreement

We may revise this Agreement from time to time. Where required by law, we will provide notice of material changes through the app, mini program, website, account center, or email.

Your continued use of the Services after the effective date of an updated Agreement constitutes acceptance of the revised terms, unless applicable law requires additional consent.

28. Notices and Contact

Legal notices, support inquiries, and other communications may be delivered through the Services, email, website posting, or the contact channels listed below.

3COM USA INC
2200 Laurelwood Rd, Santa Clara, CA 95054
privacy@3comusa.com
support@3comusa.com
www.3comusa.com

29. Miscellaneous

This Agreement, together with any incorporated policies, order pages, and service-specific terms, forms the entire agreement between you and the Company regarding the Services.

If any provision is held unenforceable, the remaining provisions remain in effect.

You may not assign this Agreement without our written consent. We may assign it in connection with a merger, acquisition, corporate reorganization, or sale of assets.

Electronic acceptance is valid and binding to the same extent as a handwritten signature.

Appendix A. Drafting Notes

Item	Customization Point
Mini program platform	Specify whether this refers to WeChat mini program or another ecosystem and align platform-specific rules.
Consumer vs B2B	Adjust the refund, warranty, and limitation clauses depending on whether end users are consumers or business customers.
Online store terms	If physical products are sold, add shipping, title, risk of loss, returns, and warranty sections.
Linked service terms	Cross-reference the Cloud Video Storage Service Agreement and any device-specific terms.
Privacy	Use the revised privacy policy so one policy covers app, mini program, website, support, and cloud-enabled features.